

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
JACOB PADILLA,

Plaintiff,

-against-

SUMMONS

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK, NYPD OFFICER
MOHAMED AWAD (Shield # 21389), NYPD OFFICERS
JOHN and JANE DOE #'s 1-3 (names and numbers
unknown at this time), and Other Unidentified members of
the New York City Police Department ("NYPD"),

Plaintiff Designates
Kings County
as the venue for trial

Defendants.
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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 10, 2024

Respectfully submitted,

/s/ 

Rachelle Kredentser, Esq.
Brownstein Legal, P.C.
40 Exchange Place
Suite 1000
New York, New York 10005
917-997-8880
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD OFFICER MOHAMED AWAD (Shield # 21389), 75th Precinct, 1000 Sutter Avenue, Brooklyn,
NY 11208-3553

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
JACOB PADILLA,

VERIFIED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER
MOHAMED AWAD (Shield # 21389), NYPD OFFICERS
JOHN and JANE DOE #'s 1-3 (names and numbers
unknown at this time), and Other Unidentified members of
the New York City Police Department ("NYPD"),

Defendants.

-----X
Plaintiff **JACOB PADILLA**, hereinafter "Plaintiff," by his attorney, RACHELLE KREDENTSER, ESQ., as
and for the Complaint herein, alleges upon information and belief as follows:

I. PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully stopped, searched, and arrested by the Defendants. Plaintiff was deprived of his federal constitutional rights, state constitutional rights, and common law rights when the individually named and the yet unidentified police defendants subjected him to, among other things, assault, battery, false arrest, unlawful search and seizure, negligence, gross negligence, intentional and negligent infliction of emotional distress, malicious prosecution, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

II. PARTIES

2. Plaintiff is a resident of Queens County, State of New York.
3. Defendant City of New York (“Defendant City”) is a municipal corporation organized under the laws of the State of New York, which violated Plaintiff’s rights as described herein. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which Defendant City is ultimately responsible. Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department (“NYPD”).
4. Defendant NYPD Officer Mohamed Awad, assigned Shield # 21389, is employed by Defendant NYPD, and was at all times relevant herein an officer, employee, and agent of the NYPD.
5. Defendant Awad is being sued in his individual and official capacities.
6. Defendant John and Jane Doe #’s 1-3 are and were at all times relevant herein officers, employees, and agents of the NYPD. Defendant officers John and Jane Doe #’s 1-3 are being sued in their individual and official capacities.
7. At all times relevant herein, the individual Defendants, including Defendant Awad, John and Jane Doe #’s 1-3, and unidentified Defendants, were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

8. In furtherance of his State causes of action, Plaintiff filed a timely Notice of Claim upon Defendant City of New York in compliance with Municipal Law Section 50.
9. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and Defendant City of New York has failed to pay or adjust the claim.
10. Defendant City of New York held a 50(h) hearing examination of Plaintiff on December 12, 2023.
11. Plaintiff demands a trial by jury.

III. STATEMENT OF FACTS

12. On approximately June 12, 2023, at approximately 8AM, individual Defendant NYPD police officers, including Defendants Awad, arrived at Plaintiff's and Plaintiff's girlfriend's hotel room on New Jersey avenue in Brooklyn, New York.
13. Defendants had their guns drawn when they interacted with Plaintiff.
14. Defendants did not have a warrant to arrest Plaintiff, to search Plaintiff, nor to search the hotel room.
15. Defendants did not have any reason to enter Plaintiff's hotel room.
16. Defendants stormed Plaintiff's hotel room.
17. Defendants, including Defendant Awad, grabbed Plaintiff aggressively by the arms, threw Plaintiff against the wall, and handcuffed Plaintiff.
18. Those other individual Defendants not involved in grabbing Plaintiff failed to intervene in preventing the other officers from violating Plaintiff's rights.
19. Defendant officers did not have permission to search Plaintiff's person.
20. Defendant officers searched Plaintiff's person.
21. Defendants did not find any contraband nor stolen property on or near Plaintiff's person.
22. Defendants did not have permission to search the hotel room.

23. Defendants searched Plaintiff's hotel room.
24. Defendants did not find any contraband nor stolen property in the hotel room.
25. Defendants purposefully handcuffed Plaintiff excessively tightly and arrested Plaintiff.
26. Defendants brought Plaintiff to the 75th precinct.
27. At all times, Plaintiff complied with Defendant officers' instructions.
28. Defendants failed to provide Plaintiff medical attention or loosen Plaintiff's handcuffs.
29. On June 14, 2023, Plaintiff was released from custody.
30. As a result of this arrest, Plaintiff missed time from his employment and lost income.
31. As a result of the arrest, Plaintiff now experiences ongoing mental trauma and fear, for which he hopes to seek treatment.
32. As a result of this arrest, Plaintiff experienced bruising on his arms.
33. As a result of this arrest, and the tight handcuffs, Plaintiff has permanent scarring on both of his wrists.
34. As a result of this arrest, the handcuffing, and other injuries resulting from Defendants' uses of force, Plaintiff sought medical treatment after his release from custody.
35. Defendant individual NYPD Officers falsified information and/or knowingly/negligently provided misleading information to the District Attorney's office, which resulted in the charges against Plaintiff.
36. Defendant Awad authored the criminal complaint, which included such misleading information.
37. On August 30, 2023, the Court dismissed and sealed each of the charges against Plaintiff.

IV. CAUSES OF ACTION

A. STATE LAW CLAIMS

Count 1: FALSE ARREST AND FALSE IMPRISONMENT

38. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 37 as if fully set forth herein.
39. The acts and conduct of the Defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendant NYPD Officers Awad and John and Jane Doe #'s 1-3 and/or unidentified NYPD officers intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
40. Individually named Defendants, as well as unidentified Defendants, were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York and the New York City Police Department ("NYPD"), which are therefore responsible for individual Defendants' conduct.
41. Defendant City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 2: MALICIOUS PROSECUTION

42. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 37 with the same force and effect as if more fully set forth at length herein.
43. The acts and conduct of the individual Defendants constitute malicious prosecution under the laws of the State of New York.
44. Individual Defendants commenced and continued a criminal proceeding against Plaintiff.
45. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.
46. Absence of probable cause is itself malice.
47. The prosecution and criminal proceedings terminated favorably for Plaintiff on August 30, 2023.

48. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
49. The individual Defendants Awad, John and Jane Doe #'s 1-3, and unidentified Defendants, were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York and the New York City Police Department. Defendant City and Defendant NYPD are therefore responsible for their conduct.

Count 3: NEGLIGENCE HIRING, RETENTION, TRAINING AND SUPERVISION

50. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 37 with the same force and effect as if more fully set forth at length herein.
51. Defendant City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individual Defendants; individuals who were unfit for the performance of NYPD duties.
52. Such negligent training included but is not limited to failure to adequately train officers to prevent false arrests, and unlawful/unwarranted/unprivileged searches. Such negligent supervision includes but is not limited to failing to supervise such interactions with members of the public and those officers wish to question.

Count 4: FAILURE TO INTERVENE

53. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 37 with the same force and effect as if more fully set forth at length herein.
54. Defendants Awad, John and Jane Doe #'s 1-3, and unidentified Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to, *inter alia*, unlawful search and seizure, detention, force, and malicious prosecution.

55. Defendants Awad, John and Jane Doe #'s 1-3, and unidentified Defendants failed to intervene to prevent the unlawful conduct described herein, including but not limited to unlawful search, seizure, and arrest, and undue force, despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
56. As a result of the foregoing, Plaintiff was subjected to illegal search and undue force upon his person over the course of his false arrest.
57. Individual Defendants were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York, the New York City Police Department, which are therefore responsible for individual Defendants' conduct.
58. Defendant City, as the employer of individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 5: NEGLIGENCE

59. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 37 with the same force and effect as if more fully set forth at length herein.
60. Defendants owed a duty of care to Plaintiff.
61. Defendants Awad, John and Jane Doe #'s 1-3, and/or unidentified Defendants breached that duty of care by subjecting him to unjustified illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
62. As a direct and proximate cause of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
63. For example, Defendants' failure to provide medical attention and sustained use of excessively tight handcuffs resulted in Plaintiff's ongoing pain, suffering, and permanent scarring.
64. All of the foregoing occurred without any fault by Plaintiff.

65. Defendant City, as the employer of the Defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 6: INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

66. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 37 with the same force and effect as if more fully set forth at length herein.
67. By the actions described herein, the individually named and unnamed Defendant NYPD officers, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
68. Such actions include, but are not limited to, false arrest, threatening an innocent Plaintiff with guns, use of undue force, threatening Plaintiff with fabricated charges and/or charges without probable cause to believe Plaintiff had committed those offenses.
69. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great aforementioned emotional injuries.
70. Defendant City, as the employer of the individually named and unnamed Defendant NYPD officer, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 7: ASSAULT

71. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 2 through 37 with the same force and effect as if more fully set forth herein.
72. New York provides a tort claim against government employees for assault.

73. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact when they detained, arrested, and held Plaintiff, and intentionally did a violent and/or menacing act which threatened such contact to Plaintiff, and that such acts caused apprehension of such contact in Plaintiff.
74. Individual Defendant Awad and/or John and Jane Doe #'s 1-3 and/or unidentified officers, menaced such offensive contact including, but not limited to, when Defendant officers had their guns drawn, menaced with guns, grabbed Plaintiff, shoved Plaintiff against a wall, and handcuffed Plaintiff.
75. Each of the individual Defendants were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York, via the New York City Police Department, which is therefore responsible for their conduct.
76. Defendant City, as the employer of individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 8: BATTERY

77. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 37 with the same force and effect as if more fully set forth herein.
78. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner with the intention of causing harmful and/or offensive bodily contact to Plaintiff and caused such battery.
79. These acts were committed without justification, and were committed by Defendant Officers Awad, and/or John and Jane Doe #'s 1-3, and/or unidentified officers.

80. Such acts included, but are not limited to, such Defendant officers grabbing Plaintiff, bruising Plaintiff, shoving Plaintiff against the wall, and handcuffing Plaintiff.
81. Individual Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for individual Defendants' conduct.
82. Defendant City of New York, as the employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 9: TRESPASS

83. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 37 with the same force and effect as if more fully set forth herein.
84. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally entered Plaintiff's hotel room.
85. Plaintiff and his girlfriend had exclusive possession of the hotel room at the time of the trespass.
86. Defendants entered the hotel room without justification nor permission.
87. Defendant NYPD officers acted wantonly, maliciously, and/or with reckless disregard for Plaintiff's rights.

B. FEDERAL CLAIMS

88. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
89. All of the aforementioned acts of Defendant Officers Awad, and/or John and Jane Doe #'s 1-3, and/or unidentified officers, their agents, servants, and employees, were carried out under the color of state law.

90. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
91. The acts complained of were conducted by the individual Defendants in their capacities as NYPD officers with all the actual and/or apparent authority attendant thereto.
92. The acts complained of were conducted by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendants City of New York and New York City Police Department, all under the supervision of ranking officers of said department.
93. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority that is forbidden by the Constitution of the United States.

Count 10: VIOLATION OF FOURTH AMENDMENT FALSE ARREST/UNREASONABLE SEIZURE UNDER 42 U.S.C. § 1983

94. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
95. As a result of the aforesaid conduct by Defendant Officers Awad, and/or John and Jane Doe #'s 1-3, and/or unidentified officers, Plaintiff was subjected to an illegal, improper, and false arrest by such Defendants, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
96. Defendants did not have probable cause to arrest Plaintiff.
97. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to among other restraints, handcuffing, without probable cause.

**COUNT 11: VIOLATION OF THE FOURTH AMENDMENT - USE OF EXCESSIVE FORCE
UNDER 42 U.S.C. § 1983**

98. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
99. Defendants used excessive force in violation of Plaintiff's rights under the Fourth Amendment to the United States Constitution to be free of the use of excessive force.
100. Individual NYPD Defendant officers committed the intentional torts of assault and battery against Plaintiff by unlawfully arresting Plaintiff and by tightly handcuffing Plaintiff.
101. In so doing, the conduct of Individual NYPD Defendant officers went well beyond the reasonable force necessary to detain and arrest Plaintiff, and the amount of force that a reasonable officer under the same or similar circumstances would use.
102. NYPD Defendant officers, Defendant Awad, Defendants John and Jane Doe #'s 1-3, and/or unidentified Defendants, slammed Plaintiff against a wall.
103. Individual NYPD Defendant officers tightened Plaintiff's handcuffs excessively, resulting in permanent scars to Plaintiff's wrists.
104. At the time of the force, Plaintiff was complying with Defendants and did not act in a manner that would any way justify the use of physical force.
105. As a result of the foregoing, Plaintiff was the victim of the torts of assault and battery resulting in physical and emotional injuries. The physical injuries included swelling and bruising to Plaintiff's arms and wrists.

**Count 12: VIOLATION OF THE FOURTH AMENDMENT UNLAWFUL SEARCH UNDER 42
U.S.C. § 1983**

106. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

107. Plaintiff was searched by individual Defendants, including Defendant Awad, Defendants John and Jane Doe #'s 1-3, and/or unidentified Defendants, without an individualized reasonable suspicion that Plaintiff had committed any crime.
108. As a result of the aforesaid conduct by individual Defendants, Plaintiff's person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.
109. Specifically, individual Defendants searched Plaintiff and Plaintiff's hotel room without permission or authority.
110. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered mental anguish, including but not limited to shock, fright, apprehension, embarrassment and humiliation.

Count 13: DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

111. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
112. Defendants Awad, John and Jane Doe #'s 1-3, and/or unidentified Defendants created and/or knowingly forwarded false evidence and false information to prosecutors in the Kings County District Attorney's Office – namely, the Defendants falsely informed prosecutors *inter alia*, that Plaintiff possessed stolen property.
113. Defendant officers did not have physical evidence nor other reliable evidence to establish that Plaintiff committed the aforementioned offenses.
114. Defendants did not have probable cause to arrest Plaintiff for said offenses.
115. Plaintiff did not possess stolen property and Defendants found no stolen property on or near Plaintiff's person nor in the hotel room.

116. Defendants, including Defendant Awad, misled the District Attorney by creating false evidence or statements, including the criminal complaint, against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
117. In knowingly forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, Defendant Awad, Defendants John and Jane Doe #'s 1-3, and/or unidentified Defendants violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
118. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

Count 14: FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

119. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
120. Defendant Awad, Defendants John and Jane Doe #'s 1-3, and/or unidentified Defendants had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in Defendants' presence, including the acts of false arrest, unlawful imprisonment, and the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings.
121. Defendant Awad, Defendants John and Jane Doe #'s 1-3, and/or unidentified Defendants further violated Plaintiff's constitutional rights when they failed to intervene and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.

122. As a result of the Defendants' failure to intercede when Plaintiff's constitutional rights were being violated in Defendants' presence, Plaintiff sustained, *inter alia*, emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

Count 15: MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

123. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
124. Defendant Awad, Defendants John and Jane Doe #'s 1-3, and/or unidentified Defendants misrepresented and/or falsified evidence before the Kings County District Attorney, including false allegations that Plaintiff possessed stolen property.
125. Defendant Awad, Defendants John and Jane Doe #'s 1-3, and/or unidentified Defendants, did not make a complete and full statement of facts to the District Attorney.
126. Defendant Awad, Defendants John and Jane Doe #'s 1-3, and/or unidentified Defendants withheld exculpatory evidence from the District Attorney.
127. Defendant Awad, Defendants John and Jane Doe #'s 1-3, and/or unidentified Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.
128. Defendant officers, including but not limited to Defendant Awad, and lacked probable cause to initiate criminal proceedings against Plaintiff.
129. Defendant Awad, Defendants John and Jane Doe #'s 1-3, and/or unidentified Defendants, acted with malice in initiating criminal proceedings against plaintiff.
130. Defendant Awad, Defendants John and Jane Doe #'s 1-3, and/or unidentified Defendants were directly and actively involved in the continuation of criminal proceedings against Plaintiff.
131. Such Defendant officers lacked probable cause to continue criminal proceedings against plaintiff.

132. Defendant Awad, Defendants John and Jane Doe #'s 1-3, and/or unidentified Defendants acted with malice in continuing criminal proceedings against Plaintiff.
133. Defendant Awad, Defendants John and Jane Doe #'s 1-3, and/or unidentified Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.
134. Defendant Awad, Defendants John and Jane Doe #'s 1-3, and/or unidentified Defendants, and /or unnamed Defendants officers made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.
135. Notwithstanding the perjurious and fraudulent conduct of Defendant Awad, Defendants John and Jane Doe #'s 1-3, and/or unidentified Defendants, the criminal proceedings were terminated in Plaintiff's favor on August 30, 2023.
136. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, suffered emotion injuries, suffered economic damages, including humiliation, and subjected to handcuffing and other physical restraints without probable cause.

Count 16: MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

137. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
138. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
139. The aforementioned customs, policies, usages, practices, procedures, and rules of Defendant City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
 - A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,

- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. arresting innocent individuals without probable cause;
- E. failing to intervene when officers are unlawfully detaining and arresting individuals without probable cause; and,
- F. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause; and,
- G. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, one of the purposes of which being for the purpose of obtaining overtime compensation; and
- H. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

- 140. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.
- 141. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.

142. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.
143. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.
144. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.
145. The acts complained of deprived the Plaintiff of their right:
- I. Not to be deprived of liberty without due process of law;
 - J. To be free from seizure and arrest not based upon probable cause;
 - K. Not to have summary punishment imposed upon them.

WHEREFORE, JACOB PADILLA, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law. Specifically, Plaintiff requests the Court

- A. declare that Defendants violated Plaintiffs rights under the Fourth, Fifth, Sixth and Fourteenth Amendments;
- B. award compensatory and punitive damages for the violation of their constitutional rights;
- C. award punitive and compensatory damages for tortious claims;
- D. award plaintiffs costs and a reasonable attorney's fee pursuant to 42 U.S.C. § 1988; and
- E. grant or award other such relief as this Court deems just and proper.

Dated: New York, New York
November 10, 2024

Respectfully submitted:
By: s/ 
Rachelle Kredentser, Esq.
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TO:
CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD OFFICER MOHAMED AWAD (Shield # 21389), 75th Precinct, 1000 Sutter Avenue, Brooklyn,
NY 11208-3553

ATTORNEY'S VERIFICATION

I, **RACHELLE KREDENTSER**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **BROWNSTEIN LEGAL, P.C.**, I have read the annexed **SUMMONS AND COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files.

DATED: New York, New York
November 10, 2024

/s/ 

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